

**THE CORPORATION OF THE TOWNSHIP OF SCHREIBER
BYLAW 18-2015**

***BEING A BYLAW TO REGULATE THE OPERATION OF ALL-TERRAIN
VEHICLES (ATVS), MULTI-PURPOSE OFF-HIGHWAY UTILITY VEHICLES
(MPVS) AND RECREATIONAL OFF-HIGHWAY VEHICLES (ROHVS) ON
MUNICIPAL HIGHWAYS***

WHEREAS pursuant to Section 191.8 (3) of the *Highway Traffic Act*, R.S.O. 1990, c.8, as amended, the Council of a municipality may pass Bylaws permitting the operation and regulating the rate of speed of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway;

AND WHEREAS pursuant to Section 191.8 (4) of the *Highway Traffic Act*, R.S.O. 1990, c.8, as amended, a Bylaw passed under subsection 191.8 (3) of the *Highway Traffic Act* may permit the operation of off-road vehicles on any highway or on any part or parts of a highway only during specified months or hours;

AND WHEREAS Ontario Regulation 316/03 applies to the operation of off-road vehicles on highways;

AND WHEREAS the Council of the Township of Schreiber deems it expedient to pass a Bylaw to regulate the operation of off-road vehicles on highways under the jurisdiction of the municipality;

NOW THEREFORE the Council of the Corporation of the Township of Schreiber enacts as follows:

PART 1 - SHORT TITLE

1.1 This Bylaw may be cited for all purposes as "Township of Schreiber Off-Road Vehicle Bylaw 18-2015".

PART 2 - DEFINITIONS

In this Bylaw,

2.1 "All-Terrain Vehicle" means an off-road vehicle that;

- (a) has four wheels, the tires of all of which are in contact with the ground;
- (b) has steering handlebars;
- (c) has a seat that is designed to be straddled by the driver;
- (d) is designed to carry a driver only and no passengers;
- (e) has headlights and tail lights that must be on at all times;
- (f) must have operating brake light; and

- (g) has an all-terrain vehicle license plate and valid insurance.
- 2.2 "Highway" includes a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof;
- 2.3 "Multi-Purpose Off-Highway Utility Vehicle" means an off-road vehicle that;
- (a) has four or more wheels, the tires of which are all in contact with the ground;
 - (b) has a steering wheel for steering control;
 - (c) has seats that are not designed to be straddled; and
 - (d) has a minimum cargo capacity of 159 kilograms.
- 2.4 "Municipality" means the Corporation of the Township of Schreiber.
- 2.5 "Off-Road Vehicle" means an off-road vehicle within the meaning of the Off-Road Vehicles Act O.Reg. 316/03, s.1.
- 2.6 "Recreational Off-Highway Vehicle" means an off-road vehicle that;
- (a) has four or more wheels, the tires of which are all in contact with the ground;
 - (b) has a steering wheel for steering control;
 - (c) has seats that are not designed to be straddled; and
 - (d) has an engine displacement equal to or less than 1,000 cubic centimetres.
- 2.7 "the *Off Road Vehicles Act*" means the Off-Road Vehicle Act as amended, and regulations thereto;

PART 3 - GENERAL

- 3.1 Off-Road Vehicles shall not be permitted to operate on highways within the municipality except as provided in this Bylaw or under the *Highway Traffic Act* and regulations made thereunder.
- 3.2 All applicable provisions of the Highway Traffic Act, R.S.O. 1990 as amended and Ontario Regulation 316/03 as amended shall apply to the operation of All-Terrain Vehicles on any highway within the municipality.

PART 4 - REGULATION OF ALL-TERRAIN VEHICLES, MULTI-PURPOSE OFF-HIGHWAY UTILITY VEHICLES AND RECREATIONAL OFF-HIGHWAY VEHICLES ON HIGHWAYS

- 4.1 An All-Terrain Vehicle, Multi-Purpose Off-Highway Utility Vehicle or Recreational Off-Highway Vehicle shall not be operated on any highway within the municipality unless it meets the equipment requirements of Sections 7 to 15 of Ontario Regulation 316/03 and it is operated in accordance with Sections 16 to 24 of Ontario Regulation 316/03, S.6.

- 4.2 In accordance with Section 22 of the Highway Traffic Act – O. Reg. 316/03, no person shall operate an All-Terrain Vehicle, Multi-Purpose Off-Highway Utility Vehicle or Recreational Off-Highway Vehicle at a greater rate of speed than twenty kilometres per hour (20km/h) upon any highway or service roadway or part thereof within the municipality.
- 4.3 Operation of All-Terrain Vehicles, Multi-Purpose Off-Highway Utility Vehicles or Recreational Off-Highway Vehicles shall be permitted on the extreme right hand side of the highway road surface only and in accordance with Regulation 316/03 of the Highway Traffic Act and the Off Road Vehicles Act, as amended.
- 4.4 No person shall operate an All-Terrain Vehicle, Multi-Purpose Off-Highway Utility Vehicle or Recreational Off-Highway Vehicle over or upon the following areas:
- (a) on any private property without consent of the owner.
 - (b) on any municipal public property without the explicit written consent of the municipality.
- 4.5 All-Terrain Vehicles, Multi-Purpose Off-Highway Utility Vehicles or Recreational Off-Highway Vehicles shall only be operated on highways from the hour of 7:00am (0700h) to 11:00 pm (2300h) on any day.
- 4.6 Operation and use of All-Terrain Vehicles, Multi-Purpose Off-Highway Utility Vehicles or Recreational Off-Highway Vehicles must be in accordance with Bylaw 41-2001 (commonly known as the Noise Control Bylaw).

PART 5 - PENALTIES

- 5.1 Any person who contravenes any section of this Bylaw is guilty of an offence and upon conviction is liable to a fine as provided for in the *Provincial Offences Act*.

PART 6 - VALIDITY

- 6.1 If any section, clause or provision of this Bylaw is for any reason declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of the Bylaw as a whole or any part thereof other than that section, clause or provision so declared to be invalid and it is hereby declared to be the intention that all the remaining sections, clauses or provisions of the Bylaw shall remain in full force and effect until repealed, notwithstanding that one or more provisions thereof shall have been declared to be invalid.

PART 7 - EFFECTIVE DATE

- 7.1 Bylaw 10-2010 is hereby rescinded.
- 7.2 This Bylaw shall become effective upon the date of enactment.

7.3 Where any Bylaw passed prior to this Bylaw conflicts with this Bylaw, the terms of this Bylaw shall prevail.

READ A FIRST AND SECOND TIME this 8th day of September, 2015.

READ A THIRD TIME AND FINALLY ENACTED this 8th day of September, 2015.

Mayor

Seal

Clerk